

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/21/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01461
CASE NAME: KANWAL SODHI VS. JONATHAN BORNSTEIN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: BORNSTEIN, JONATHAN

TENTATIVE RULING:

Before the court is Defendants' unopposed Demurrer to the 1st Amended Complaint. Defendants argue that the demurrer should be sustained without leave to amend because the 1st Amended Complaint fails to plead compliance with the Tenant Protection Act's prerequisites. Defendants argue that Plaintiff's notice to terminate was defective and therefore void. Plaintiff cannot amend the termination notice that was previously served.

California Rule of Court 8.54 (c) provides, "A failure to oppose a motion may be deemed a consent to the granting of the motion."

The Demurrer is **sustained without leave to amend**.

2. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

*HEARING ON MOTION IN RE: STRIKE CERTAIN IMPROPER MATTER FROM THE NOTICE OF LIEN
FILED BY DEFENDANTS ON 3/26/26

FILED BY: ZHENG, XIAO YI

TENTATIVE RULING:

Before the Court is a motion by plaintiff Ziao Yi Zheng to strike a notice of lien filed by defendants Michael Cisternino, Kristen Morcos, and KMOR LLC. For the reasons set forth, the motion is **denied**.

Background

This action involves a dispute over a real estate transaction. In his operative first amended complaint ("FAC"), Plaintiff Ziao Yi Zheng has sued The Kase Group, which he alleges is a licensed real estate brokerage firm ("Kase"), Michael Cisternino ("Cisternino"), alleged to be a licensed real estate broker, KMOR, LLC dba F45 Training Moraga ("KMOR"), Kristen Morcos ("Morcos"), alleged to be affiliated with KMOR prior to its formation and a managing member after it was formed in 2020, and Jacob Abusharkh ("Abusharkh"), also alleged to be a California real estate licensee. (FAC ¶¶ 2-6.) Plaintiff alleges he is the trustee of the Zheng Family Trust which is the owner of a commercial building in a shopping center located in Moraga (the "Property") where the F45 Training Moraga gym was to become a tenant. (FAC ¶ 1.) Plaintiff alleges that Michael Cisternino was a Senior Vice President or otherwise an associate in the Kase firm and a managing principal of KMOR at the time of the transactions at issue in the FAC. (FAC ¶ 3.)

Plaintiff asserts fifteen causes of action in the FAC arising out of an exclusive six-month listing agreement with Kase for the sale of the Property, and the subsequent lease transaction with an option to purchase by which KMOR became a lessee and tenant at the Property. Plaintiff alleges, among other things, the nondisclosure of Cisternino's interest in KMOR when he presented KMOR's proposals for the Property as the only interest received in the six-month period of the listing and asserts breaches of fiduciary duties and fraud or concealment of material facts in connection with the lease transaction with KMOR.

Disputes have arisen over discovery. In connection with such a dispute, this Court awarded sanctions against Zheng and his (now former) counsel in favor of defendant Cisternino. (1/12/2024 Min. Order Adopting Tent. Rul. Awarding \$9,082 in Sanctions.) Plaintiff and his counsel sought review of the order awarding sanctions in the First District Court of Appeal, and the Court of Appeal affirmed the trial court's sanctions order. (1st DCA Order dated 10/8/2025; Remittur filed 12/12/2025.) Plaintiff is now self-represented.

On March 26, 2026, Cisternino filed a Notice of Lien reflecting the \$9,082 sanctions award (the "March Lien"). (3/26/2026 Not. of Lien.) Plaintiff moves the Court for an order striking the March Lien, arguing that the monetary claim subject to the March Lien has been satisfied.

Legal Standards Applicable to Motion to Strike and Analysis

Zheng's motion to strike is made pursuant to Code of Civil Procedure sections 435, 436(a), 436(b), and